

24STCV31983 24STCV31983

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: MOTION OF CROSS-DEFENDANT JEFFREY BERG TO SEAL (1) THIRD AMENDED CROSSCOMPLAINT AND (2) DEMURRER TO SAME

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Case Number: 24STCV31983 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

GHALIB DATTA, an individual,

Plaintiff,

vs.

MARGARET MARR, an individual;

ORIANE LIVINGSTON a/k/a ORIANE GAY, an individual; MAGGIE MARR LEGAL, P.C., a
California corporation; ANDREA CHUNG, an individual, and DOES 1-20, inclusive,

Defendants.

AND RELATED CROSS PLEADINGS

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CASE NO: 24STCV31983

[TENTATIVE] ORDER RE: MOTION

OF CROSS-DEFENDANT JEFFREY BERG TO SEAL (1) THIRD AMENDED CROSSCOMPLAINT AND

(2) DEMURRER TO SAME

Dept. 731

August 4, 2026

8:30 A.M.

[TENTATIVE] ORDER RE:

DEMURRER TO THE THIRD AMENDED COMPLAINT OF CROSSCOMPLAINANT ORIANE LIVINGSTON

Dept. 731

August 4, 2026

8:30 A.M.

Moving Party: Cross-Defendant, Jeffrey Berg

Opposing Party: Cross-Complainant, Orianne Livingston

Notice: OK

Background Facts

This action involves a series of disputes arising from business projects entered by the parties. Given the number of parties at issue, the Court uses surnames to identify individuals. No disrespect is intended.

a. The

First Amended Complaint

Plaintiff Ghalib Datta ("Datta")

sues Defendants Margeret Marr ("Marr"), Oriane Livingston ("Livingston"), Maggie Marr Legal, P.C. ("Marr Legal"), Andrew Chung ("Chung"), and Does 1-20 pursuant to a November 17, 2025, First Amended Complaint ("FAC") alleging claims of (1) Professional Negligence against Marr, Livingston, and Marr Legal, (2) Breach of Fiduciary Duty against all Defendants, (3) Negligent Representation against (a) Chung and (b) Marr and Marr Legal, (4) Declaratory

Relief against Livingston, (5) Breach of Contract against (a) Livingston and (b) Marr and Marr Legal, (6) Breach of the Covenant of Good Faith and Fair Dealing against Marr and Marr Legal, (7) Fraudulent Misrepresentation against Marr and Marr Legal, and (8) Negligent Hiring, Training, and Retention against Marr Legal.

The claims arise from the following allegations, among others. Datta hired Chung and Marr Legal, including Marr and Livingston, to negotiate and secure his \$600,000 film loan for The Comeback Trail. All Defendants assured Datta that his loan would be fully secured and that they would perfect his security interest. However, Datta later discovered no UCC-1 Financing Statement was ever filed, causing him to be treated as an unsecured creditor when the film company went bankrupt. Datta separately alleges that Marr and Marr Legal falsely represented that Livingston was as an attorney qualified to provide legal advice. Finally, Datta claims Livingston improperly solicited him into a separate documentary venture, took \$55,000.00, failed to perform required work, and refused to return the money.

b. The

Third Amended Cross-Complaint

In turn, Livingston sues Datta, Jeffrey Berg ("Berg"), and Does 2 through 25 pursuant to an April 16, 2026, Third Amended Cross-Complaint ("TACC") alleging claims of: (1) Breach of Contract, (2) Breach of Fiduciary Duty, (3) Misappropriation and Misuse of Confidential Materials, (4) Declaratory Relief – Ownership of Intellectual Property, and (5) Injunctive Relief against Datta and Does 2 through 25; and (6) Negligent Supervision / Enabling Abuse and (7) Declaratory Relief – Pattern of Retaliation and Blacklisting against Berg.

The claims arise from the following allegations as against Jeffrey Berg, among others. While employed by ICM Partners in 2006, Berg, the company's then-CEO, enabled or ignored harassment perpetrated by Hal Sadoff ("Sadoff") against Livingston, retaliated against Livingston for speaking out, defamed Livingston after an NDA was executed, and orchestrated or encouraged a decades-long pattern of blacklisting, reputational sabotage, and professional interference against Livingston. Livingston asserts that Berg's network influenced Datta's conduct and contributed to retaliatory escalation leading to this lawsuit, including alleged surveillance, interference with a book launch, and professional obstruction in 2024-2025,

including via acts by former employee of Berg, David Gonzalez (“Gonzalez”).

c. Motion

Before the Court

Now before the Court are (1) Berg’s
opposed demurrer against the TACC’s sixth cause of action and (2) Berg’s opposed
motion to seal portions of the TACC, his demurrer, and Exhibit A attached to
the Dugdale declaration filed with Berg’s demurrer, arguing that all three
papers inappropriately refer to the NDA executed by Datta in 2006.

Motion to Seal

a. Substantive

Requirements

i.

Legal Standard

“The public has a First Amendment
right of access to civil litigation documents filed in court and used at trial
or submitted as a basis for adjudication.” (Savaglio v. Wal-Mart Stores,
Inc. (2007) 149 Cal.App.4th 588, 596 (Savaglio), citing NBC
Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178,
1208-1209, fn. 25.)

Therefore, before a trial court
orders a record sealed, it must hold a hearing and make express findings set
forth in California Rules of Court, rule 2.550, subdivision (d): (1) there
exists an overriding interest that overcomes the right of public access to the
record; (2) the overriding interest supports sealing the record; (3) a
substantial probability exists that the overriding interest will be prejudiced
if the record is not sealed; (4) the proposed sealing is narrowly tailored; and
(5) no less restrictive means exist to achieve the overriding interest. (Savaglio,
supra, at p. 596; Cal. Rules of Court, rule 2.550, subd. (d).) A court’s
order allowing documents to be filed under seal must contain express factual
findings establishing these five factors. (Cal. Rules of Court, rule 2.550(d).)

ii.

Discussion

After review, the Court DENIES
Berg's motion, without prejudice.

1. Overriding Interest

Berg's motion to seal seeks to seal
copies of or references to a 2006 confidential settlement agreement between
Livingston and other parties, as related to sexual harassment allegations by
Livingston at employment at ICM Partners.

The initial and critical step in
sealing a record is showing an overriding interest in sealing the record that
overcomes the right of public access to that record. (Cal. Rules of Court, rule
2.2550(d)(1).)

Here, Berg's motion argues as
follows regarding overriding interest:

Privacy interests and
binding contractual obligations not to disclose information provide the
requisite "overriding interest" that justifies sealing a document and its
associated information. NBC Subsidiary (KNBCTV), Inc. v. Superior Court,
20 Cal.4th 1178, 1222 n. 46 (1999) (approvingly citing Publiker Indus.,
Inc. v. Cohen, 733 F.2d 1059, 1073 (3d Cir. 1984) (recognizing such an
overriding interest where "a binding contractual obligation not to disclose
certain information which to the court seems innocuous but newsworthy," as "in
that situation unbridled disclosure of the nature of the controversy would
deprive the litigant of his right to enforce a legal obligation")); cf.
Universal City Studios, Inc. v. Superior Ct., 110 Cal. App. 4th 1273, 1283
(2003) (agreeing "that [a party's] contractual obligation not to disclose can
constitute an overriding interest within the meaning of rule 243.1(d)" but
holding no prejudice from disclosure had been shown in that case).

The overriding
interests here are concrete and substantial. The 2006 Agreement expressly requires
Ms. Livingston to keep confidential the Agreement's terms and substance,
including the settlement payment amount, and the underlying facts relating to
her allegations against ICM and Mr. Sadoff. The TACC squarely violates this

obligation by attaching the 2006 Agreement as an exhibit, disclosing its terms and underlying circumstances, and setting forth allegations concerning Mr. Sadoff, ICM's internal complaint process, and the mediation process that resulted in the 2006 Agreement.

(Motion, pp. 4-5.)

However, Berg's recitation of law is not correct.

It is true that a contractual obligation not to disclose the terms of a settlement agreement may constitute an overriding interest supporting the sealing of certain records. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1284 (*Universal City Studios*)). Indeed, in *NBC Subsidiary (KNBCTV), Inc. v. Superior Court*, 20 Cal.4th 1178 ("NBC"), our Supreme Court cited *Publicker Industries, Inc. v. Cohen* (3d Cir. 1984) 733 F.2d 1059 (*Publicker*) for the proposition that "enforcement of binding contractual obligations not to disclose" may constitute an overriding interest. (*NBC*, supra, 20 Cal.4th at p. 1223, fn. 46.) In turn, *Publicker* held an "overriding interest" may include circumstances where the content of information may be critical, such as where trade secrets are involved, or where certain information is protected by the attorney-client privilege. (*Publicker*, supra, 733 F.2d at p. 1073.) The court further opined: "A similar situation would be presented where there is a binding contractual obligation not to disclose certain information which to the court seems innocuous but newsworthy; in that situation unbridled disclosure of the nature of the controversy would deprive the litigant of his right to enforce a legal obligation." (*Id.* at pp. 1073–1074.)

However, and critical to the motion before the Court, under *Publicker*, "more than a mere agreement of the parties [is required] to seal documents filed in a public courtroom." (*Universal City Studios*, supra, 110 Cal.App.4th at p. 1281.) There must be "a specific showing of serious injury" from disclosure. (*Id.* at p. 1282.) *Universal City Studios* noted no appellate court decision had construed *Publicker* to permit a record to be filed under seal "merely upon the agreement of the parties without a specific showing of serious injury." (*Universal City Studios*, supra, at p. 1282; see *Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97, 106; *McNair v. National Collegiate Athletic Assn.*

(2015) 234 Cal.App.4th 25, 35–36.) Thus, the “[m]ere deprivation of the right to enforce a contractual obligation is not, without an additional showing of serious harm, sufficient to override the public’s right of access to the courts.” (Lederman v. Prudential Life Ins. Co. of America, Inc. (2006) 385 N.J. Super. 307, 318; see *Publicker*, supra, 733 F.2d at p. 1071 [party seeking to seal records must show disclosure will work a clearly defined and serious injury]; see also *Universal City Studios*, supra, 110 Cal.App.4th at pp. 1283–1284 [contractual obligation not to disclose terms of settlement agreement could be an “overriding interest,” however, defendant did not show substantial prejudice to its business interests would occur if settlement were not sealed].)

Here, the moving papers do not argue “serious injury,” instead limiting themselves to arguing “prejudice,” which is the third of five elements in a motion to seal. (Motion, pp. 5-6.) A review of the prejudice grounds shows arguments that (1) prejudice arises from the bare-faced public availability of the 2006 agreement in the record because the agreement was meant to be kept confidential and (2) third-party privacy rights are implicated, favoring denial.

The first point fails because, if this Court were to accept that the record must be sealed strictly based on the confidentiality provisions of the 2006 agreement, then this Court would be in direct contradiction of *Universal Studios City*. (*Universal City Studios*, supra, at p. 1282 [noting that no appellate court decision had construed *Publicker* to permit a record to be filed under seal “merely upon the agreement of the parties without a specific showing of serious injury”].)

The Court notes that confidentiality provisions contained in settlement agreements do not become unenforceable merely because litigation later arises involving the same subject matter. Rather, the confidentiality obligation may constitute an overriding interest if the moving party demonstrates with particularized facts that disclosure would result in a clearly defined and serious injury beyond the mere inability to enforce the agreement. Here, however, the moving papers contain no declaration identifying any specific reputational, business, privacy, or other concrete harm likely to result from disclosure of the challenged materials.

However, the second point carries

merit regarding third-party privacy rights, which cannot be waived other than by those individuals or entities, and not by other persons or entities. (See *Boler v. Superior Court* (1987) 201 Cal.App.3d 467, 472, fn.1.)

Accordingly, the Court determines that an overriding interest here exists, but only as to third-party information, e.g., names, birth dates, addresses, phone numbers, email addresses, and Social Security number.

2. Remaining Factors

The remaining factors for sealing a record are (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest.

Here, the overriding interest in protecting third-party privacy supports sealing the record as to third-party information, and a substantial probability exists that such interests will be prejudiced by the ongoing public nature of the record.

However, Berg's motion, as filed, is overbroad as to whether the proposed sealing is narrowly tailored and whether less restrictive means exist to achieve the overriding interest. This is because the motion to seal does nothing to indicate which portions of the record are proposed to be sealed, e.g., which paragraphs in the TACC or which clauses in the 2006 agreement are meant to be sealed in relation to third-party privacy rights. If the Court were to accept the current recommendation, the Court would need to seal the entire TACC and 2006 agreement, all without any guidance as to which information therein is being challenged as inappropriately disclosed, and even though conceivably not all contents therein would be subject to an overriding interest supporting sealing of the record.

Less restrictive alternatives were readily available. For example, the moving party could have proposed narrowly tailored redactions directed only to identifying information or specific confidential settlement provisions rather than requesting wholesale sealing of the pleadings and exhibits. Such a proposal would have better satisfied Rule

2.550(d)(4) and (5).

An explanation for this shortcoming appears in counsel's declaration: "At the time of this filing, the TACC has not yet been entered on the Court's public docket, and I cannot verify whether the 2006 Agreement has been filed publicly or is under seal, nor whether Ms. Livingston has excerpted only portions of it or filed it in full. Accordingly, Mr. Berg submits the complete 2006 Agreement under seal for the Court's review." (Motion, Dugdale Decl., ¶ 2.) This explanation, however, does nothing to help Berg's motion and in fact accomplishes the opposite by highlighting the fact that Berg filed his motion acting on imperfect information that caused him to request overbroad relief.

Berg's motion thus fails to carry his burden, foreclosing relief.

b. Conclusion

Cross-Defendant Jeffrey Berg's motion to seal is accordingly DENIED, without prejudice.

Demurrer

a. Meet and Confer

The Court determines that sufficient meet and confer efforts preceded the filing of this demurrer as required by the Code. (Demurrer, Dugdale Decl., ¶ 3, Ex. B; see Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

b. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts

needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer may only be used to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in White v. Cridlebaugh (2009) 178 Cal.App.4th 506, 521.)

c. Discussion

The TACC's sixth cause of action alleges Negligent Supervision / Enabling Abuse against Berg, which arises from allegations surrounding the 2006 harassment alleged to have been experienced by Livingston and Berg's failure to supervise Sadoff in 2006 and Gonzalez in the 2020s.

Berg demurs to the TACC's sixth cause of action on the grounds that the claim is barred either by an executed and applicable release from Livingston in the 2006 agreement or by the claim's statute of limitations, which began to run in 2006. Berg otherwise argues that the

claim fails to allege essential elements of the cause of action, including in part on the basis that the TACC fails to allege an underlying employment relationship as to Gonzalez. (See Demurrer, pp. 3-4.)

As to the limitations period argument, Livingston argues that on demurrer, the proposition that a claim has run its limitations period must be clear on the face of the pleadings, which Livingston argues is not the case here. (Opposition, pp. 3-4.) Livingston otherwise argues that she has sufficiently alleged this claim against Berg as based on conduct by Sadoff and Gonzalez. (Opposition, p. 4.)

In reply, Berg reiterates the position that the limitations period began to run in 2006 and argues that no continuing violations doctrine applies here. Specifically, Berg argues that the TACC's only allegations against Berg beyond 2006 involve an innocuous question regarding whether Livingston had violated the 2006 agreement, and that the allegations against David Gonzalez (alleged as Berg's former assistant) involve conduct in the 2020s that bears no alleged relationship to the 2006 allegations. (Reply, pp. 9-10.)

After review, the Court finds in favor of Berg.

Negligent supervision as subject to a two-year statute of limitations. (Code Civ. Proc., § 335.1.) Here, Berg is correct in highlighting that the TACC clearly establishes when the negligent supervision relating to Sadoff and the sexual harassment allegations is alleged to have taken place: "In 2006, while employed at ICM Partners under then-CEO Jeffrey Berg, she was subjected to persistent, disgusting sexual harassment and professional retaliation by Hal Sadoff." (TACC, p. 2.) Assuming that this harassing conduct took place on December 31, 2006—the last day of 2006 and most favorable reading of the allegations—then on the face of the pleadings, the limitations period ran as of December 31, 2008.

Nor do the allegations support application of the continuing violation doctrine. The TACC alleges discrete acts of negligent supervision occurring in 2006. Later allegations concerning separate conduct by other individuals decades afterward do not revive a claim predicated upon supervisory decisions allegedly made in 2006. Absent allegations of continuing supervisory authority or continuing wrongful conduct

by Berg within the limitations period, the statute of limitations is not tolled.

Separately, as argued by the demurrer (p. 5, lines 22-25), the TACC also pleads no viable negligent supervision in relation to conduct by David Gonzalez because the TACC clearly alleges that at the time that Gonzalez allegedly harassed Livingston in the 2020s, Gonzalez was a former employee of Berg's. (TACC, p. 35 ["The full video surveillance recording capturing David Gonzales --- former assistant to Jeffrey Berg and long-term collaborator --- walking outside Cross-Complainant's residence, and scrutinizing it, in a manner consistent with surveillance."].) This is fatal where negligent supervision applies only where "an employer ... 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.'" (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139, emphasis added.)

Accordingly, Berg has met his burden on demurrer as to the sixth cause of action.

Leave to amend is denied because the defects identified above appear incapable of cure. The statute of limitations bar appears from the face of the pleading, and the TACC affirmatively alleges that David was a former employee rather than an employee subject to Berg's supervision. Livingston has not identified, either in the opposition or at meet-and-confer, any additional facts that could cure these legal deficiencies. Accordingly, the Court finds no reasonable possibility that amendment would state a viable cause of action.

d. Conclusion

Cross-Defendant Jeffrey Berg's demurrer is SUSTAINED, without leave to amend.

Cross-Defendant Jeffrey Berg is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting

on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court